**Zoning Resolution**

THE CITY OF NEW YORK
**Zohran K. Mamdani, Mayor**

CITY PLANNING COMMISSION
**Sideya Sherman, Chair**

# Chapter 5 - Accessory Off-Street Parking and Loading Regulations

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# Chapter 5 - Accessory Off-Street Parking and Loading Regulations

## 25-00 - GENERAL PURPOSES AND DEFINITIONS

LAST AMENDED
12/15/1961

## 25-01 - General Purposes

LAST AMENDED
4/22/2009

The following regulations on permitted and required accessory off-street parking spaces and accessory bicycle parking spaces are adopted in order to provide needed space off the streets for parking in connection with new residences, to reduce traffic congestion resulting from the use of streets as places for storage of automobiles, to protect the residential character of neighborhoods, to provide for a higher standard of residential development within the City and thus to promote and protect public health, safety and general welfare.

## 25-02 - Applicability

LAST AMENDED
4/22/2009

Except as otherwise provided in this Section, the regulations of this Chapter on permitted or required #accessory# off-street parking spaces and #accessory# bicycle parking spaces apply to #residences#,

#community facility# #uses# or #commercial# #uses#, as set forth in the provisions of the various Sections.

## 25-021 - Applicability of regulations in the Manhattan Core and Long Island City area

LAST AMENDED
12/5/2024

Special regulations governing #accessory# off-street parking and loading in the #Manhattan Core# are set forth in Article I, Chapter 3, and special regulations governing #accessory# off-street parking in the #Long Island City area#, as defined in Section 16-02 (Definitions), are set forth in Article I, Chapter 6.

## 25-022 - Applicability of regulations to non-profit hospital staff dwellings

LAST AMENDED
12/5/2024

In all districts, the regulations of this Chapter applicable to #community facility# #uses# shall not apply to #non-profit hospital staff dwellings#. In lieu thereof, the regulations applicable to #residences# shall apply, as follows:

(a) the regulations of an R5 District shall apply to #non-profit hospital staff dwellings# located in R1, R2 and R3 Districts;

(b) the regulations of an R6 District shall apply to #non-profit hospital staff dwellings# located in R4 and R5 Districts; and

(c) the regulations of an R10 District shall apply to #non-profit hospital staff dwellings# located in R6 through R10 Districts.

## 25-023 - Applicability of regulations to certain community facility uses in lower density growth management areas

LAST AMENDED
12/5/2024

(a) In #lower density growth management areas# other than R6 and R7 Districts in Community District 10, Borough of the Bronx, all #zoning lots# containing #buildings# with the following #uses# shall be subject to the provisions of paragraph (b) of this Section:

(1) ambulatory diagnostic or treatment health care facilities listed under Use Group III(B), except where such #zoning lot# contains #buildings# used for hospitals, as defined in the New York State Hospital Code, or #long-term care facilities#; or

(2) child care services as listed under the definition of #school# in Section 12-10 (DEFINITIONS), except where such #zoning lot# contains #buildings# used for houses of worship or, for #zoning lots# that do not contain #buildings# used for houses of worship, where the amount of #floor area# used for child care services is equal to 25 percent or less of the amount of #floor area# permitted for #community facility# #use# on the #zoning lot#.

(b) All #zoning lots# that meet the conditions of paragraph (a) of this Section shall comply with the provisions of Section 25-624 (Special parking regulations for certain community facility

uses in lower density growth management areas) in lieu of the following provisions:

(1) the parking location provisions of Sections 25-622 (Location of parking spaces in lower density growth management areas) and 25-623 (Maneuverability standards);

(2) the driveway and curb cut provisions of Sections 25-632 (Driveway and curb cut regulations in lower density growth management areas) and 25-634 (Curb cut regulations for community facilities); and

(3) the screening provisions of Section 25-65 (Screening).

In addition, where the #uses# listed in paragraphs (a)(1) and (a)(2) of this Section result from a change of #use#, the provisions of Section 25-31 (General Provisions) shall be modified to require #accessory# off-street parking spaces for such #uses#. However, the requirements of Sections 25-31 and 25-624 may be modified for #zoning lots# containing #buildings# with such changes of #use# where the Chairperson of the City Planning Commission certifies to the Commissioner of Buildings that such modifications are necessary due to the location of existing #buildings# on the #zoning lot#, and such requirements have been complied with to the maximum extent feasible.

## 25-024 - Applicability of regulations in flood zones

LAST AMENDED
12/5/2024

Special regulations applying in the #flood zone# are set forth in Article VI, Chapter 4.

## 25-10 - PERMITTED ACCESSORY OFF-STREET PARKING SPACES

LAST AMENDED
12/15/1961

## 25-11 - General Provisions

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, #accessory# off-street parking spaces may be provided for #residences#, for permitted #community facility# #uses#, for #commercial# #uses# permitted as #accessory# #uses# in #large-scale residential developments#, or for #uses# permitted by special permit, subject to the provisions set forth in the following Sections:

Section 25-12 (Maximum Size of Accessory Group Parking Facilities)

Section 25-15 (Maximum Spaces for Single-Family Detached Residences)

Section 25-16 (Maximum Spaces for Other Residences)

Section 25-18 (Maximum Spaces for Permitted Community Facility or Commercial Uses).

Such #accessory# off-street parking spaces may be open or enclosed. However, except as otherwise provided in Sections 73-47 (Roof Parking) or 74-531 (Additional parking spaces or roof parking for accessory group parking facilities), no spaces shall be located on any roof which is immediately above a #story# other than a #basement#.

## 25-12 - Maximum Size of Accessory Group Parking Facilities

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, no #group parking facility# #accessory# to #residences# shall contain more than 200 off-street parking spaces, and no such facility #accessory# to permitted #community facility# or #commercial# #uses# shall contain more than 150 off-street parking spaces, except as provided in Section 25-13 (Modification of Maximum Size of Accessory Group Parking Facilities).

## 25-13 - Modification of Maximum Size of Accessory Group Parking Facilities

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, a #group parking facility# may contain additional spaces not to exceed 50 percent of the maximum number otherwise permitted under the provisions of Section 25-12 (Maximum Size of Accessory Group Parking Facilities), if the Commissioner of Buildings determines that:

(a) access for such facility is located so as to draw a minimum of vehicular traffic to and through #streets# having predominantly #residential# frontages;

(b) such facility has separate vehicular entrances and exits thereto, located not less than 25 feet apart;

(c) such facility, if #accessory# to a permitted #community facility# or #commercial use# is located on a #street# not less than 60 feet in width; and

(d) such facility, if #accessory# to a permitted #commercial use#, has adequate reservoir space at the entrance to accommodate a minimum of 10 automobiles.

The Commissioner of Buildings shall establish appropriate additional regulations with respect to the design of such facility to minimize adverse effects on the character of the surrounding area, such as requirements for shielding of floodlights.

## 25-14 - Exceptions to Maximum Size of Accessory Group Parking Facilities

LAST AMENDED
12/15/1961

## 25-141 - For hospitals

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, the Board of Standards and Appeals may permit #group parking facilities# #accessory# to hospitals, with more than 150 spaces, in accordance with the provisions of Section 73-46 (Exceptions to Maximum Size of Accessory Group Parking Facilities).

## 25-142 - For accessory uses in large-scale residential developments

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, the City Planning Commission may permit #group parking facilities# #accessory# to #uses# in #large-scale residential developments# with more than the prescribed maximum of Section 25-12 (Maximum Size of Accessory Group Parking Facilities), in accordance with the provisions of Section 74-531 (Additional parking spaces or roof parking for accessory group parking facilities).

## 25-15 - Maximum Spaces for Single-Family Detached Residences

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, not more than three off-street parking spaces shall be provided for a #single-family# #detached# #residence#, except on #zoning lots# with a #lot area# of 10,000 square feet or more. For the purposes of this Section, a driveway shall not be considered as off-street parking space.

## 25-16 - Maximum Spaces for Other Than Single-Family Detached Residences

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, for #zoning lots# occupied by #residential# #uses# other than #single-family# #residences#, no more than two off-street parking spaces #accessory# to such #residences# shall be provided for each #dwelling unit# located on the #zoning lot#.

## 25-17 - Modification of Maximum Spaces for Other Than Single-Family Detached Residences

LAST AMENDED
12/5/2024

R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In the districts indicated, a greater number of off-street parking spaces than permitted under the provisions of Section 25-16 (Maximum Spaces for Other Residences) may be provided if the Commissioner of Buildings determines that:

(a) such additional spaces are needed for the occupants of #residences# to which such spaces are #accessory#, in order to prevent excessive on-street parking; and

(b) such spaces are designed in such a way as to minimize traffic on #streets# with predominantly #residential# frontages.

The Commissioner of Buildings shall establish appropriate additional regulations with respect to the design of the parking areas to minimize adverse effects on the character of surrounding areas.

## 25-18 - Maximum Spaces for Permitted Community Facility or Commercial Uses

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, on a #zoning lot# used for permitted #community facility# or #commercial# #uses#, not more than one off-street parking space shall be provided for every 400 square feet of #lot area#, except as provided in Section 25-19 (Modification of Maximum Spaces for Permitted Community Facility or Commercial Uses).

## 25-19 - Modification of Maximum Spaces for Permitted Community Facility or Commercial Uses

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, a greater number of off-street parking spaces than permitted under the provisions of Section 25-18 (Maximum Spaces for Permitted Community Facility or Commercial Uses) may be provided if the Commissioner of Buildings determines that:

(a) such additional spaces are needed for the occupants, visitors, customers, or employees of the #use# or #uses# to which such spaces are #accessory#; and

(b) such spaces are designed in such a way as to minimize traffic on #streets# with predominantly #residential# frontages.

The Commissioner of Buildings shall establish appropriate additional regulations with respect to the design of the parking area, to minimize adverse effects on the character of surrounding areas.

## 25-20 - REQUIRED ACCESSORY OFF-STREET PARKING SPACES FOR RESIDENCES

LAST AMENDED
12/5/2024

In the districts indicated, #accessory# off-street parking spaces shall be required for #residences# in accordance with the provisions of this Section, inclusive. Separate requirements are set forth for #zoning lots# in the #Inner Transit Zone# pursuant to Section 25-21, inclusive, the #Outer Transit Zone#, pursuant to Section 25-22, inclusive, and beyond the #Greater Transit Zone#, pursuant to Section 25-23, inclusive.

## 25-21 - Required Parking in the Inner Transit Zone

LAST AMENDED
12/5/2024

## 25-211 - General provisions

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In the districts indicated, within the #Inner Transit Zone#, no #accessory# off-street parking spaces shall be required for #dwelling units# or #rooming units# created after December 5, 2024.

For #dwelling units# or #rooming units# in #multiple dwelling residences# created between July 20, 1950 and December 5, 2024, off-street parking spaces #accessory# to such #dwelling units# or #rooming units# shall continue to be provided in accordance with the calculation methods set forth in Section 25-212 (Existing parking requirements in the Inner Transit Zone). The number of parking spaces required pursuant to Section 25-212 may only be reduced or eliminated pursuant to the provisions of Section 73-432 (Reduction of existing parking spaces for income-restricted housing units) or Section 75-31 (Authorization to Remove Required Parking).

For the purposes of this Section, the term "created" shall mean that, for the applicable #dwelling unit# or #rooming unit#, a temporary certificate of occupancy has been issued or, where no temporary certificate of occupancy has been issued, a final certificate of occupancy has been issued.

## 25-212 - Existing parking requirements in the Inner Transit Zone

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

Where #accessory# off-street parking is required to be maintained for #multiple dwelling residences# pursuant to Section 25-211, the number of required #accessory# off-street parking spaces may be calculated pursuant to either paragraph (a) or (b) of this Section.

For the purposes of calculating the number of required parking spaces for any #building# containing #residences#, any fraction of a space 50 percent or greater shall be counted as an additional space, and for the purposes of applying such provisions to #rooming units#, three #rooming units# shall be considered the equivalent of one #dwelling unit#.

Any #accessory# off-street parking spaces serving a #zoning lot# in excess of the number required by this Section shall be considered permitted spaces and shall not be regulated by the provisions of Section 25-20, inclusive.

(a) Previously approved applications

The number of required #accessory# off-street parking spaces shall be the number of spaces that were required at the time of the #development#, #enlargement# or #conversion#, as applicable, unless it would no longer be required pursuant to the regulations in effect prior to December 5, 2024. Such calculation may include all applicable parking reductions, waivers, geographically based modifications, or modifications for specific #uses#.

For the purpose of establishing this amount, the Department of Buildings may accept any historical evidence deemed appropriate by the Department of Buildings, such as construction documents, zoning analyses, or other documents submitted as an approved application for a building permit.

Where a #building# was subsequently #enlarged# or #converted# after its #development#, this historical evidence must include materials indicating the most-recent parking requirement in effect for all #dwelling units# on the #zoning lot# prior to December 5, 2024.

(b) Simplified reference table

As an alternative to the method set forth in paragraph (a), the number of required #accessory# off-street parking spaces shall be the number of spaces set forth in this paragraph (b).

The number of required off-street spaces shall be determined by the total number of #dwelling units# on a #zoning lot# existing prior to December 5, 2024 multiplied by the applicable parking requirement in Column A or B, as applicable. However, where the calculation results in a number of parking spaces less than or equal to the number in Column C, no parking spaces

shall be required for #residences# on the #zoning lot#.

| REQUIREMENTS FOR DWELLING UNITS LOCATED WITHIN MULTIPLE DWELLINGS | | | |
|---|---|---|---|
| **District** | **Requirement** | | **Waive** |
| | **Column A** | **Column B** | **Column** |
| | Parking requirement per standard #dwelling unit# (in percent) | Parking requirement per #dwelling unit# that is #qualifying senior housing# or an income-restricted unit in #qualifying affordable housing# (in percent) | Maximum waive |
| R1 | 100 | 0 | 0 |
| R2 | 100 | 0 | 0 |
| R3 | 100 | 0 | 0 |
| R4 | 100 | 0 | 1 |
| R5 | 85 | 0 | 1 |
| R6 | 50 | 0 | 5 |
| R7 | 50 | 0 | 25 |
| R8 | 40 | 0 | 30 |

| | | | |
|---|---|---|---|
| R9 | 40 | 0 | 40 |
| R10 | 40 | 0 | 50 |
| R11 | 40 | 0 | 60 |
| R12 | 40 | 0 | 75 |

No spaces shall be required on any #zoning lot# where there is no way to arrange the required spaces with access to the #street# to conform to the provisions of Section 25-63 (Location of Access to the Street).

## 25-22 - Required Parking in the Outer Transit Zone

LAST AMENDED
12/5/2024

## 25-221 - General provisions

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In the districts indicated, within the #Outer Transit Zone#, #accessory# off-street parking spaces shall be required for #dwelling units# created as part of a #development# or #enlargement# after December 5, 2024, in accordance with the provisions of Section 25-222. No #accessory# off-street parking spaces shall be required for #rooming units# created as part of a #development# or #enlargement# after March 22, 2016.

For #dwelling units# created pursuant to the zoning regulations in effect after July 20, 1950, and prior to December 5, 2024, off-street parking spaces #accessory# to such #dwelling units# cannot be removed if such spaces were required by such zoning regulations at the time such #dwelling units# were created. However, such spaces can be removed if:

(a) such spaces would not be required pursuant to the applicable zoning regulations currently in effect, as well as those in effect prior to December 5, 2024; or

(b) such spaces would not be required pursuant to an amendment to the applicable zoning regulations effectuated after December 5, 2024.

For #rooming units# created pursuant to the zoning regulations in effect after July 20, 1950, and prior to March 22, 2016, the applicable zoning regulations in effect prior to March 22, 2016 shall continue to apply. For the purposes of applying such provisions to #rooming units#, three #rooming units# shall be considered the equivalent of one #dwelling unit#.

The number of parking spaces required pursuant to Section 25-22, inclusive, may only be reduced or eliminated pursuant to the provisions of Sections 73-432 (Reduction of existing parking spaces for income-restricted housing units), 73-433 (Reduction of existing parking spaces for qualifying senior housing) or 74-52 (Special Permit to Remove Required Parking).

For the purposes of this Section, the term “created” shall mean that, for the applicable #dwelling unit# or #rooming unit#, a temporary certificate of occupancy has been issued or, where no temporary certificate of occupancy has been issued, a final certificate of occupancy has been issued.

## 25-222 - Requirements for developments or enlargements in the Outer Transit Zone

LAST AMENDED

12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In the districts indicated, within the #Outer Transit Zone#, for #dwelling units# created as part of a #development# or #enlargement# after December 5, 2024, the number of required #accessory# off-street parking spaces shall be determined by multiplying the number of #dwelling units# by the applicable parking requirement set forth for the applicable district in Columns A or B of the table below. However, where the calculation results in a number of parking spaces less than or equal to the number in Column C, no parking spaces shall be required for #residences# on the #zoning lot#.

| **REQUIREMENTS FOR DWELLING UNITS** | | | |
|---|---|---|---|
| **District** | **Requirement** | | **Waiver** |
| | **Column A** | **Column B** | **Column** |
| | Parking requirement per standard #dwelling unit# (in percent) | Parking requirement per #dwelling unit# that is an #ancillary dwelling unit#, #qualifying senior housing# or an income-restricted unit in #qualifying affordable housing# (in percent) | Maximum wa spaces)[1], |
| R1 R2 | 100 | 0 | 0 |

| | | | |
|---|---|---|---|
| R3-1 R3A R3X<br>R4-1 R4A R4B R5A | 50 | 0 | 0[3] |
| R3-2 R4 | 35 | 0 | 5 |
| R5 | 35 | 0 | 10 |
| R5B R5D | 25 | 0 | 10 |
| R6 R7-1 R7-2 | 25 | 0 | 15 |
| R7A R7B | 15 | 0 | 15 |
| R7-3 R7D R7X | 15 | 0 | 25 |
| R8 | 12 | 0 | 30 |
| R9 | 12 | 0 | 40 |
| R10 | 12 | 0 | 50 |
| R11 | 12 | 0 | 60 |
| R12 | 12 | 0 | 75 |

1 For #qualifying residential sites# in R1 through R5 Districts, #accessory# off-street parking spaces shall be waived where the number of #dwelling units# is 75 or less.

2 For #zoning lots# in R7-2, R7-3, R8, R9, R10, R11 or R12 Districts, the parking requirements shall be waived where the #lot area# is 10,000 square feet or less.

3 For #zoning lots# existing on December 5, 2024 where the #lot width# is 25 feet or less, no parking shall be required. In addition, irrespective of the #lot width# of the #zoning lot#, in R4B Districts, one #accessory# off-

street parking space may be waived.

No spaces shall be required on any #zoning lot# where there is no way to arrange the required spaces with access to the #street# to conform to the provisions of Section 25-63 (Location of Access to the Street).

## 25-23 - Required Parking Beyond the Greater Transit Zone

LAST AMENDED
12/5/2024

## 25-231 - General provisions

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In the districts indicated, beyond the #Greater Transit Zone#, #accessory# off-street parking spaces shall be required for #dwelling units# created as part of a #development# or #enlargement# December 5, 2024, in accordance with the provisions of Section 25-232. No #accessory# off-street parking spaces shall be required for #rooming units# created as part of a #development# or #enlargement# after March 22, 2016.

For #dwelling units# created pursuant to the zoning regulations in effect after July 20, 1950, and prior to December 5, 2024, off-street parking spaces #accessory# to such #dwelling units# cannot be removed if such spaces were required by such zoning regulations at the time such #dwelling units#

were created. However, such spaces can be removed if:

(a) such spaces would not be required pursuant to the applicable zoning regulations currently in effect, as well as those in effect prior to December 5, 2024; or

(b) such spaces would not be required pursuant to an amendment to the applicable zoning regulations effectuated after December 5, 2024.

For #rooming units# created pursuant to the zoning regulations in effect after July 20, 1950, and prior to March 22, 2016, the applicable zoning regulations in effect prior to March 22, 2016 shall continue to apply. For the purposes of applying such provisions to #rooming units#, three #rooming units# shall be considered the equivalent of one #dwelling unit#.

The number of parking spaces required pursuant to Section 25-23, inclusive, may only be reduced or eliminated pursuant to the provisions of Section 73-433 (Reduction of existing parking spaces for qualifying senior housing) or Section 74-52 (Special Permit to Remove Required Parking).

For the purposes of this Section, the term “created” shall mean that, for the applicable #dwelling unit# or #rooming unit#, a temporary certificate of occupancy has been issued or, where no temporary certificate of occupancy has been issued, a final certificate of occupancy has been issued.

## 25-232 - Requirements for developments or enlargements beyond the Greater Transit Zone

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In the districts indicated, beyond the #Greater Transit Zone#, for #dwelling units# created as part of a #development# or #enlargement# after December 5, 2024, the number of required #accessory# off-street parking spaces shall be determined by multiplying the number of #dwelling units# by the applicable parking requirement set forth for the applicable district in Columns A or B of the table below. However, where the calculation results in a number of parking spaces less than or equal to the number in Column C, no parking spaces shall be required for #residences# on the #zoning lot#.

| **REQUIREMENTS FOR DWELLING UNITS** | | | | | |
|---|---|---|---|---|---|
| **District** | **Requirement** | | | | **Waiv** |
| | **Column A** | **Column B** | | | **Colum** |
| | Parking requirement per standard #dwelling unit#<br><br>(in percent) | Parking requirement per #dwelling unit# that is an income-restricted unit in #qualifying affordable housing#<br><br>(in percent) | Parking requirement per #dwelling unit# that is #qualifying senior housing#<br><br>(in percent) | Parking requirement per #dwelling unit# that is an #ancillary dwelling unit#<br><br>(in percent) | Maximum<br><br>(in spac |
| R1 R2 | 100 | 50 | 10 | 0 | 0 |
| R3A R3-1 R3X<br>R4-1 R4B R4A<br>R5A | 100 | 50 | 10 | 0 | 0[5] |
| R3-2 | 50 | 50 | 10 | 0 | 1 |
| R4 | 50 | 50 | 10 | 0 | 3 |
| R5 R5B R5D | 50 | 25 | 10 | 0 | 5 |

| | | | | | |
|---|---|---|---|---|---|
| R6 | 50 | 25 | 10 | 0 | 10 |
| R7-1 R7B | 50[1] | 12 | 10 | 0 | 10 |
| R7A R7D R7X | 50[1] | 12 | 10 | 0 | 15 |
| R7-2 R7-3 | 50[2] | 12 | 10 | 0 | 15 |
| R8 R9 R10 R11 R12 | 40[3] | 12 | 10 | 0 | 15 |

1 For #zoning lots# in R7-1, R7A, R7B, R7D and R7X Districts, the parking requirement per standard #dwelling unit# shall be reduced to 30 percent where the #lot area# is 10,000 square feet or less.

2 For #zoning lots# in R7-2 and R7-3 Districts, the parking requirement per standard #dwelling unit# shall be reduced to 30 percent where the #lot area# is between 10,001 and 15,000 square feet and waived where the #lot area# is 10,000 square feet or less.

3 For #zoning lots# in R8, R9, R10, R11 and R12 Districts, the parking requirement per standard #dwelling unit# shall be reduced to 20 percent where the #lot area# is between 10,001 and 15,000 square feet and waived where the #lot area# is 10,000 square feet or less.

4 For #qualifying residential sites# in R1 through R5 Districts, #accessory# off-street parking spaces shall be waived where the number of #dwelling units# is 75 or less.

5 For #zoning lots# existing on December 5, 2024 where the #lot width# is 25 feet or less, no parking shall be required. In addition, irrespective of the #lot width# of the #zoning lot#, in R4B Districts, one #accessory# off-street parking space shall be waived.

No spaces shall be required on any #zoning lot# where there is no way to arrange the required spaces with access to the #street# to conform to the provisions of Section 25-63 (Location of Access to the Street).

## 25-24 - Special Provisions for Certain Areas

LAST AMENDED
12/5/2024

## 25-241 - Special provisions for certain community districts

LAST AMENDED
12/5/2024

(a) Borough of the Bronx

Within the portion of Community District 12 in the Borough of the Bronx that is within the #Outer Transit Zone#, the parking requirements applicable to #zoning lots# located beyond the #Greater Transit Zone#, other than those for #qualifying affordable housing# or #qualifying senior housing#, shall apply.

(b) Borough of Queens

Within the portions of Community Districts 3 & 4 east of Junction Boulevard in the Borough of the Queens that is within the #Outer Transit Zone#, the parking requirements applicable to #zoning lots# located beyond the #Greater Transit Zone#, other than those for #qualifying affordable housing# or #qualifying senior housing#, shall apply.

Within the portion of Community District 14 in the Borough of the Queens that is within the #Outer Transit Zone#, the parking requirements applicable to #zoning lots# located beyond the #Greater Transit Zone#, other than those for #qualifying affordable housing# or #qualifying senior housing#, shall apply.

## 25-30 - REQUIRED ACCESSORY OFF-STREET PARKING SPACES FOR PERMITTED NON-RESIDENTIAL USES

LAST AMENDED
12/15/1961

## 25-31 - General Provisions

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, #accessory# off-street parking spaces, open or enclosed, shall be provided in conformity with the requirements set forth in the table at the end of this Section for all #development# after December 15, 1961, for the #uses# listed in the table. In addition, all other applicable requirements of this Chapter shall apply as a condition precedent to the #use# of such #development#.

After December 15, 1961, if an #enlargement# results in a net increase in the #floor area# or other applicable unit of measurement specified in the table in this Section, the same requirements set forth in the table shall apply to such net increase in the #floor area# or other specified unit of measurement.

A parking space is required for a portion of a unit of measurement one-half or more of the amount set forth in the table.

For the purposes of this Section, a tract of land on which a group of such #uses# is #developed# under single ownership or control shall be considered a single #zoning lot#.

For those #uses# for which rated capacity is specified as the unit of measurement, the Commissioner of Buildings shall determine the rated capacity as the number of persons which may be accommodated by such #uses#.

The requirements of this Section shall be waived in the following situations:

(a) when, as the result of the application of such requirements, a smaller number of spaces would be required than is specified by the provisions of Section 25-33 (Waiver of Requirements for Spaces Below Minimum Number);

(b) when the Commissioner of Buildings has certified, in accordance with the provisions of Section 25-34 (Waiver of Requirements for All Zoning Lots Where Access Would Be Forbidden) that there is no way to arrange the spaces with access to the #street# to conform to the provisions of Section 25-63 (Location of Access to the Street); or

(c) for certain #zoning lots#, #developments# or #enlargements# below minimum thresholds pursuant to Section 25-36 (Waiver of Requirements for Certain Small Zoning Lots).

For the purposes of applying the loading requirements of this Chapter, #uses# are grouped into the following Parking Requirement Categories (PRC) based on how requirements are measured. The specific designations for #uses# are set forth in the Use Group tables.

| **Parking Requirement Category** | **Type of Requirement** |
|---|---|
| PRC – A | square feet of #floor area# |
| PRC – B | person-rated capacity |
| PRC – C | square feet of #lot area# |
| PRC – D | square feet of #floor area#, or number of employees |

| | |
|---|---|
| PRC – E | number of beds |
| PRC – F | guest rooms or suites |
| PRC – G | other |

## REQUIRED OFF-STREET PARKING SPACES FOR NON-RESIDENTIAL USES

| **Parking Requirement Category** | **PRC - A** | | | | **PRC- B** | | | **P** |
|---|---|---|---|---|---|---|---|---|
| | **A1** 1 | **A2** 1 | **A3** | **A4** | **B1** | **B2** | **B3** | |
| **Unit of measurement** | **per square feet of #floor area#** 2 | | | | **per persons-rated capacity** | | | **per s of #** |
| R1 R2 | 1 per 100 | 1 per 150 | n/a | n/a | n/a | 1 per 8 | 1 per 10 3 | |
| R3 | | | 1 per 400 | | | | | |
| R4 R5 | 1 per 200 | 1 per 300 | 1 per 500 | | | | | |
| R6 R7-1 R7B | 1 per 300 | 1 per 400 | 1 per 800 | | | 1 per 16 | 1 per 20 3 | |
| R7-2 R7-3 R7A R7D R7X R8 R9 R10 R11 R12 | None required | None required | None required | | | None required | None required | |

1 For #accessory# #commercial# #uses# in #large-scale residential developments#.

2 For ambulatory diagnostic or treatment facilities listed under Use Group III(B), #cellar# space, except #cellar# space used for storage shall be included to determine parking requirements. However, in #lower

density growth management areas#, all #cellar# space, including storage space, shall be used to determine parking requirements.

3 In R5, R6 and R7-1 Districts, no #accessory# off-street parking spaces shall be required for that portion of a non-profit neighborhood settlement house or community center which is used for youth-oriented activities.

| **Parking Requirement Category** | **PRC - D** | | **PRC - E** | | | **PRC - F** | |
|---|---|---|---|---|---|---|---|
| | **D1** | **D2** | **E1** | **E2** | **E3** 5 | **F1** | **F2** |
| **Unit of measurement** | **per square feet of #floor area# or per employees** | | **per bed** | | | **per guest room or suites** | |
| R1 R2 | n/a | n/a | 1 per 5 4 | 1 per 6 | 1 per 10 | n/a | n/a |
| R3 | | | | | | | |
| R4 R5 | | | | | | | |
| R6 R7-1 R7B | | | 1 per 8 4 | 1 per 12 | 1 per 20 | | |
| R7-2 R7-3 R7A R7D R7X R8 R9 R10 R11 R12 | | | 1 per 10 4 | None required | None required | | |

4 Parking requirements for #uses# in PRC-E1 are in addition to area utilized for ambulance parking.

5 Independent living #dwelling units# within a continuing care retirement community shall be subject to the #accessory# off-street parking requirements of Section 25-20. For the purposes of applying such requirements, #dwelling units# shall be as defined in Section 12-10.

| Parking Requirement Category | PRC - G | | | | | |
|---|---|---|---|---|---|---|
| | **Agricultural #uses#** | **Outdoor racket courts** | **Outdoor skating rinks** | **Colleges, universities or seminaries** | **#Schools#** | **Libraries, museums or non-commercial art galleries** |
| **Unit of measurement** | **per square feet of #lot area# used for selling purposes** | **per court** | **per square feet of #lot area#** | **per square feet of #floor area# used for classrooms, laboratories, student centers or offices** | **per square feet of #floor area#** | **per square feet of #floor area#** 6 |
| R1 R2 | 1 per 1,000 | 1 per 2 | 1 per 800 | 1 per 1,000 | 1 per 1,500 | 1 per 1,000 |
| R3 | | | | | None required | |
| R4 R5 | | | | | | |
| R6 R7-1 R7B | 1 per 2,500 | 1 per 5 | 1 per 2,000 | 1 per 2,000 | | 1 per 2,000 |
| R7-2 R7-3 R7A R7D R7X R8 R9 R10 R11 R12 | None required | None required | None required | None required | | None required |

6 Parking requirements for libraries, museums or non-commercial art galleries shall not apply to #floor area# used for storage.

| Parking Requirement Category | PRC - G (continued) | | | | | | | |
|---|---|---|---|---|---|---|---|---|
| | **Court houses** | **Fire or Police stations** | **Prisons** | **Docks** | **Camps, overnight and day** | **Post offices** 7 | **Funeral establishments** | **Riding or s** |

| Unit of measurement | per square feet of #floor area# | per square feet of #floor area# | per beds-rated capacity | see Section 62-43 | per square feet of #lot area# or per employees | per square feet of #floor area# | per square feet of #floor area# | per squ #floo |
|---|---|---|---|---|---|---|---|---|
| R1 R2 | n/a | 1 per 500 | n/a | see Section 62-43 | 1 per 2,000 or 1 per 3 | 1 per 800 | n/a | 1 p |
| R3 | | | | | | | | |
| R4 R5 | | | | | | 1 per 1,200 | | |
| R6 R7-1 R7B | | 1 per 800 | | | | 1 per 1,500 | | 1 p |
| R7-2 R7-3 R7A R7D R7X R8 R9 R10 R11 R12 | | None required | | | | None required | | None |

7 For #accessory# #commercial# #uses# in #large-scale residential developments#.

## 25-311 - Special Provisions in Certain Areas

LAST AMENDED
6/6/2024

In #lower density growth management areas#, the parking requirements for child care services, as listed under the definition of #school# in Section 12-10 (DEFINITIONS), in R1 through R5 Districts, shall be 1 per 1,000 square feet.

## 25-32 - Special Provisions for a Single Zoning Lot With Uses Subject to Different Parking Requirements

LAST AMENDED
12/15/1961

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, where any #building# or #zoning lot# contains two or more #uses# having different parking requirements as set forth in the following Sections, the parking requirements for each type of #use# shall apply to the extent of that #use#.

Section 25-20 (REQUIRED ACCESSORY OFF-STREET PARKING SPACES FOR RESIDENCES)

Section 25-31 (General Provisions)

## 25-33 - Waiver of Requirements for Spaces Below Minimum Number

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, except for the #uses# listed in Section 25-331 (Exceptions to application of waiver provisions), the parking requirements set forth in Sections 25-31 (General Provisions) or 25-32 (Special Provisions for a Single Zoning Lot With Uses Subject to Different Parking Requirements) shall not apply to permitted non-#residential uses# if the total number of #accessory# off-street parking spaces required for all such #uses# on the #zoning lot# is less than the number of spaces set forth in the following table:

| Districts | Number of Spaces |
| --- | --- |

| | |
|---|---|
| R1 R2 R3 R4 R5 | 10 |
| R6 R7-1 R7B | 25 |
| R7-2 R7-3 R7A R7D R7X R8 R9 R10 R11 R12 | 40 |

## 25-331 - Exceptions to application of waiver provisions

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, the waiver provisions of Section 25-33 (Waiver of Requirements for Spaces Below Minimum Number) shall not apply to the following types of #uses#:

Agricultural #uses#, including greenhouses, nurseries or truck gardens;

Ambulatory diagnostic or treatment health care facilities in R3, R4-1 and R4A Districts in #lower density growth management areas#. However, the waiver provisions shall apply where such #use# is located in such areas on the same #zoning lot# as a hospital, as defined in the New York State Hospital Code or a #long-term care facility#, and shall apply where such #use# is located in such areas on any #zoning lot# in an R6 or R7 District in Community District 10, Borough of the Bronx;

Outdoor tennis courts;

Camps, overnight or day;

#Schools# in R1 and R2 Districts, child care services in R1, R2, R3, R4-1 and R4A Districts in #lower density growth management areas#. However, the waiver provisions shall apply where child care services are located in such districts on the same #zoning lot# as a house of worship, and shall apply where child care services located in such districts on #zoning lots#

that do not contain houses of worship, where the amount of #floor area# used for child care services is equal to 25 percent or less of the amount of #floor area# permitted for #community facility# #use# on the #zoning lot#.

## 25-34 - Waiver of Requirements for All Zoning Lots Where Access Would Be Forbidden

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, the requirements set forth in Sections 25-31 (General Provisions) and 25-32 (Special Provisions for a Single Zoning Lot With Uses Subject to Different Parking Requirements) shall not apply to any #building# or #zoning lot# as to which the Commissioner of Buildings has certified that there is no way to arrange the required spaces with access to the #street# to conform to the provisions of Section 25-63 (Location of Access to the Street). The Commissioner of Buildings may refer such matter to the Department of Transportation for a report and may base the determination on such report.

## 25-35 - Special Provisions for Zoning Lots Divided by District Boundaries

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, whenever a #zoning lot# is divided by a boundary between districts having different requirements for #accessory# off-street parking spaces, the provisions set forth in Article VII, Chapter 7, shall apply.

## 25-36 - Waiver of Requirements for Certain Small Zoning Lots

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, the parking requirements of Section 25-31 (General Provisions) for camps, overnight or day, shall only apply to #developments# or #enlargements# with a minimum of either 10,000 square feet of #lot area# or 10 employees.

## 25-37 - Waiver for Mixed-Use Developments

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, the non-residential parking requirements of Section 25-30 shall be waived for #uses# located within #buildings# containing #residences# on any #zoning lot#:

(a) within the #special mixed use parking area#;

(b) with a #lot area# of 10,000 square feet or less that is located within the remaining portion of the #Outer Transit Zone#; or

(c) with a #lot area# of 5,000 square feet or less that is located outside the #Greater Transit Zone#.

## 25-40 - RESTRICTIONS ON OPERATION OF ACCESSORY OFF-STREET PARKING SPACES

LAST AMENDED
12/15/1961

## 25-41 - Use of Spaces Accessory to Permitted Residential Uses

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, all permitted or required off-street parking spaces, open or enclosed, which are #accessory# to #residences# shall be designed and operated primarily for the long-term storage of the private passenger motor vehicles used by the occupants of such #residences#, except as set forth in this Section.

(a) Within individual parking spaces:

#accessory# off-street parking spaces may be rented for periods of not less than one week and not more than one month to persons who are not occupants of such #residences#; and

(b) Within #group parking facilities#:

(1) in the #Inner Transit Zone#, all #accessory# off-street parking spaces may be made available for public use. Outside the #Inner Transit Zone#, #accessory# off-street parking spaces may be rented for periods of not less than one week and not more than one month to persons who are not occupants of such #residences#; and

(2) up to five spaces or 20 percent of all #accessory# off-street parking spaces, whichever is greater, may be allocated to:

(i) publicly available electric vehicle charging facilities not otherwise permitted pursuant to Section 25-44, including #accessory# equipment and electric vehicle parking spaces. #Accessory# off-street parking spaces shall be restored when such charging facilities are removed; or

(ii) #car sharing vehicles#.

However, spaces designed and operated pursuant to paragraphs (a) and (b) of this Section shall be made available to the occupants of the #residences# to which they are #accessory# within 30 days of a written request to the landlord.

## 25-42 - Use of Spaces Accessory to Permitted Non-residential Uses

LAST AMENDED

12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, all permitted or required off-street parking spaces, open or enclosed, which are #accessory# to permitted non-#residential uses# shall be used only by occupants, visitors, customers or employees of such #uses# and shall not be rented, except as set forth in this Section.

In R3-2 through R12 Districts, other than other than R4-1, R4A, R4B and R5A Districts, up to five spaces or 20 percent of all #accessory# off-street parking spaces, whichever is greater, may be allocated to:

(a) publicly available electric vehicle charging facilities not otherwise permitted pursuant to Section 25-44, including #accessory# equipment and electric vehicle parking spaces. #Accessory# off-street parking spaces shall be restored when such charging facilities are removed; or

(b) #car sharing vehicles#.

## 25-43 - Restrictions on Automotive Repairs and Sale of Motor Fuel

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, automotive repairs or the sale of motor fuel, motor oil or automotive accessories are not permitted, except as provided in this Section in specified districts.

## 25-431 - Limited repairs permitted in specified districts

LAST AMENDED
12/5/2024

R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In the districts indicated, within a #completely enclosed# garage, #detached# from a #building# containing #residences# and containing not less than 150 #accessory# off-street parking spaces, minor automotive repairs (not including body work) are permitted.

## 25-44 - Electric Vehicle Charging

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, electric vehicle charging facilities shall be permitted at all #accessory# off-street parking spaces. Such charging shall be for the owners, occupants, employees, customers, residents or visitors using such #accessory# parking spaces.

## 25-50 - RESTRICTIONS ON LOCATION AND USE OF ACCESSORY OFF-STREET PARKING SPACES

LAST AMENDED
12/5/2024

## 25-51 - General Provisions

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, all permitted or required off-street parking spaces, open or enclosed, #accessory# to #residences#, to permitted #community facility# #uses#, to #commercial# #uses# permitted as #accessory# #uses# in #large-scale residential developments#, or to #uses# permitted by special permit, shall be provided on the same #zoning lot# as the #building# or #use# to which such spaces are #accessory#, except as provided in the following Sections:

Section 25-52 (Off-site Spaces for Residences)

Section 25-53 (Off-site Spaces for Permitted Non-residential Uses)

Section 25-54 (Joint and Shared Facilities)

Section 25-55 (Additional Regulations for Required Spaces When Provided Off Site)

Section 73-45 (Modification of Off-site Parking Provisions)

## 25-52 - Off-site Spaces for Residences

LAST AMENDED
12/5/2024

R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In the districts indicated, all permitted or required off-street parking spaces #accessory# to #residences# may be provided on a #zoning lot# other than the same #zoning lot# as the #residences# to which such spaces are #accessory#, provided that in such instances all such spaces are:

(a) located in a district other than a #Residence District# or a C7 District, or provided in a joint facility located in a district other than an R1 or R2 District, on the same #zoning lot# as one of the #buildings# to which it is #accessory#, and conforming to the provisions of Section 25-541 (Joint Facilities);

(b) not further than the maximum distance from the #zoning lot# specified in Section 25-521; and

(c) enclosed, except that such spaces may be unenclosed provided that the #zoning lot# on which such spaces are located does not contain a #residential use#.

## 25-521 - Maximum distance from zoning lot

LAST AMENDED
12/5/2024

R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In the districts indicated, all such spaces shall not be further than the distance set forth in the following table from the nearest boundary of the #zoning lot# occupied by the #residences# to which they are #accessory#.

| District | Maximum Distance from #Zoning Lot# |
|---|---|

| | |
|---|---|
| R3 R4 R5 R6 R7-1 R7B | 600 feet |
| R7-2 R7-3 R7A R7D R7X R8 R9 R10 R11 R12 | 1,000 feet |

## 25-53 - Off-site Spaces for Permitted Non-residential Uses

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, off-site parking spaces may be provided in accordance with the provisions set forth in this Section, inclusive.

## 25-531 - For houses of worship

LAST AMENDED
12/5/2024

R1 R2 R3 R4

In the districts indicated, parking spaces #accessory# to permitted houses of worship may be provided on a #zoning lot# other than the same #zoning lot# as such house of worship but within the same district or an adjoining district, provided that in such instances all such spaces shall be not further than 600 feet from the nearest boundary of the #zoning lot# containing such #uses#.

## 25-532 - For permitted non-residential uses

LAST AMENDED
12/5/2024

R5 R6 R7 R8 R9 R10 R11 R12

In the districts indicated, all permitted or required off-street parking spaces #accessory# to permitted non-#residential uses# may be provided on a #zoning lot# other than the same #zoning lot# as such #uses#, but within the same district or an adjoining district other than an Rl, R2, R3 or R4 District provided that in such instances all such spaces located in a #Residence District# shall be not further than 200 feet from the nearest boundary of the #zoning lot# containing such #uses#, and all such spaces located in a #Commercial District# or #Manufacturing District# shall be not further than 600 feet from the nearest boundary of such #zoning lot#, and provided further that the Commissioner of Buildings determines that:

(a) there is no way to arrange such spaces on the same #zoning lot# as such #uses#; and

(b) such spaces are so located as to draw a minimum of vehicular traffic to and through #streets# having predominantly #residential# frontages.

Such parking spaces shall conform to all additional regulations promulgated by the Commissioner of Buildings to minimize adverse effects on the character of surrounding areas.

## 25-54 - Joint and Shared Facilities

LAST AMENDED
9/9/2004

## 25-541 - Joint facilities

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, all #accessory# off-street parking spaces may be provided in facilities designed to serve jointly two or more #buildings# or #zoning lots#, provided that:

(a) the number of spaces in such joint facilities shall be not less than that required by this Chapter for the combined number of #dwelling units# or the combined #floor area#, #lot area#, rated capacity, or other such unit of measurement in such #buildings# or #zoning lots#;

(b) all such spaces are located in a district where they are permitted under the applicable provisions of Sections 25-52 (Off-Site Spaces for Residences), 25-53 (Off-site Spaces for Permitted Non-residential Uses), or 73-45 (Modification of Off-site Parking Provisions); and

(c) the design and layout of such joint facilities meet standards of adequacy set forth in regulations promulgated by the Commissioner of Buildings.

## 25-55 - Additional Regulations for Required Spaces When Provided Off Site

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, when required #accessory# off-street parking spaces are provided off the site in accordance with the provisions of Sections 25-52 (Off-site Spaces for Residences), 25-53 (Off-site Spaces for Permitted Non-residential Uses) or 25-54 (Joint and Shared Facilities), the following additional regulations shall apply:

(a) Such spaces shall be in the same ownership (single fee ownership or alternative ownership arrangements of the #zoning lot# definition in Section 12-10) as the #use# to which they are #accessory#, and shall be subject to deed restrictions filed in an office of record, binding the owner and the owner's heirs and assigns to maintain the required number of spaces available throughout the life of such #use#.

(b) Such spaces shall conform to all applicable regulations of the district in which they are located.

## 25-60 - ADDITIONAL REGULATIONS FOR PERMITTED OR REQUIRED ACCESSORY OFF-STREET PARKING SPACES

LAST AMENDED
12/15/1961

## 25-61 - General Provisions

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, all permitted or required #accessory# off-street parking spaces shall conform to the provisions of the following Sections:

Section 25-62 (Size and Location of Spaces)

Section 25-63 (Location of Access to the Street)

Section 25-64 (Surfacing)

Section 25-65 (Screening)

Section 25-66 (Parking Lot Landscaping)

Section 25-67 (For Parking Facilities Containing Car Sharing Vehicles)

No portion of a #side lot ribbon# shall be less than eight feet wide and no portion shall be more than 10 feet wide on an #interior lot# or #through lot# and not more than 20 feet wide on a #corner lot#. If two #zoning lots# share a common #side lot ribbon# along a common #side lot line#, the width of a shared #side lot ribbon# must be at least eight feet.

Special regulations applying to #large-scale residential developments# are set forth in Article VII, Chapter 8, and to #large-scale community facility developments# in Article VII, Chapter 9.

## 25-62 - Size and Location of Spaces

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

(a) Minimum maneuvering space

In all districts, as indicated, for all #accessory# off-street parking spaces, open or enclosed, each 300 square feet of unobstructed standing or maneuvering area shall be considered one parking space, except as follows:

(1) Standard attended facilities

An area of less than 300 square feet, but in no event less than 200 square feet, may be considered as one space, where the layout and design of the parking area are adequate to permit convenient access and maneuvering in accordance with regulations promulgated by the Commissioner of Buildings, or where the developer or applicant for a building permit or certificate of occupancy certifies that such spaces will be fully attended.

In any case where a reduction of the required area per parking space is permitted on the basis of the developer's certification that such spaces will be fully attended, it shall be set forth in the certificate of occupancy that paid attendants employed by the owners or operators of such spaces shall be available to handle the parking and moving of automobiles at all times when such spaces are in use.

(2) Attended facilities with parking lift systems

For portions of an attended parking facility with parking lift systems, each individually lifted tray upon which a vehicle is stored shall be considered one parking space. Any other attended space not on a lifted tray shall be subject to the provisions of paragraph (a)(1) of this Section.

(3) #Automated parking facilities#

For #automated parking facilities#, each tray upon which a vehicle is stored shall

constitute one parking space. The term “tray” shall refer to the structural support for vehicle storage in both pallet and non-pallet vehicle storage systems.

However, auxiliary parking trays in #automated parking facilities# may be exempted from constituting a parking space where the Commissioner of Buildings determines that such auxiliary parking trays are necessary to store and retrieve vehicles for the efficient operation of such #automated parking facility#.

(4) #Single-# and #two-family# #residences#

For #accessory# off-street parking spaces serving #single-# or #two-family# #residences#, an area of less than 300 square feet may be considered as one space.

(b) Driveway access

Driveways used to access parking spaces must be unobstructed for a width of at least eight feet and a height of eight feet above grade and, if connecting to a #street#, such driveway may only be accessed by a curb cut.

(c) Minimum size for each parking space

In no event shall the dimensions of any parking stall be less than 18 feet long and 8 feet, 6 inches wide.

However, the width of a parking stall may be reduced to eight feet for #detached#, #semi-detached# or #zero lot line buildings# on a #zoning lot# where not more than four #accessory# parking spaces are provided if such #accessory# parking spaces are located in a #side lot ribbon# and are subject to the provisions of Section 25-621 (Location of parking spaces in certain districts).

(d) Special rules for certain areas

In the Borough of Staten Island and in #lower density growth management areas# in Community District 10, Borough of the Bronx, for #community facility# #uses#, each parking space in a parking area not within a #building# shall be within a parking stall accessed from a travel aisle, where each such stall and aisle complies with the maneuverability standards of paragraph (b) of Section 36-57 (Parking Lot Maneuverability and Curb Cut Regulations). The use of an attendant shall be permitted only where necessary to accommodate additional, permitted parking spaces within the travel aisles. For such open parking areas with 18 or more spaces, or greater than 6,000 square feet in area, the provisions of Section 37-90 (PARKING LOTS) shall also apply.

## 25-621 - Location of parking spaces in certain districts

LAST AMENDED
12/5/2024

All #accessory# off-street parking spaces on #zoning lots# with #buildings# containing #residences# shall be located in accordance with the provisions of this Section, except that in R1, R2, R3, R4A and R4-1 Districts within #lower density growth management areas#, the provisions of Section 25-622 shall apply. In addition, all such parking spaces shall be subject to the curb cut requirements of Section 25-63 (Location of Access to the Street).

R1 R2 R3-1 R3A R3X R4-1 R4A R5A

(a) In the districts indicated, for #single-# and #two-family residences#, #accessory# off-street parking spaces shall be located within or to the side or rear of #buildings# containing #residences#. #Accessory# parking spaces may also be located between the #street line# and

#street wall# of such #buildings# and their prolongations only where such spaces are located in a driveway that accesses at least one parking space located to the side or rear of such #building# and no portion of such driveway is located in front of such #buildings#.

However, such parking spaces may also be located in a driveway directly in front of a garage, where such garage is within:

(1) a #semi-detached# #building# in an R3-1 or R4-1 District; or

(2) a #detached# #building# on a #zoning lot# with at least 35 feet of frontage along the #street# accessing such driveway, and at least 18 feet of uninterrupted curb space along such #street#.

No parking spaces of any kind shall be allowed between the #street line# and #street wall# of an #attached# or #semi-detached# #building# in an R1, R2, R3A, R3X, R4A or R5A District, or for an #attached# #building# in an R3-1 or R4-1 District.

R3-2 R4 R5

(b) In the districts indicated, other than R4-1, R4A, R4B, R5A, R5B and R5D Districts, for #single-# and #two-family residences#, #accessory# off-street parking spaces shall be located within or to the side or rear of #buildings# containing #residences#. #Accessory# parking spaces may also be located between the #street line# and #street wall# of such #buildings# and their prolongations, provided that, for #buildings# on #zoning lots# with less than 35 feet of #street# frontage, such spaces are located in a driveway in the #side lot ribbon#, and provided that for #buildings# on #zoning lots# with at least 35 feet of #street# frontage and at least 18 feet of uninterrupted curb space along a #street#, either:

(1) no more than two parking spaces located between the #street line# and #street wall# of such #buildings# and their prolongations shall be accessed from a single curb cut, and the parking area for these spaces shall not be more than 20 feet in width measured

parallel, or within 30 degrees of being parallel, to the #street line#; or

(2) a #group parking facility# with five or more spaces is provided and is screened in accordance with the requirements of Section 25-65 (Screening), paragraphs (a) or (b), as applicable.

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

(c) In all districts, as indicated, for #zoning lots# with #buildings# that are #multiple dwelling residences#, all #accessory# off-street parking spaces shall be located only within such #buildings# or in any open area on the #zoning lot# that is not between the #street line# and the #street wall# of such #buildings# and their prolongations.

However, on #through lots#, such limitation shall only apply along one #street# frontage.

In addition, such limitation shall not apply on #zoning lots# occupying an entire #block#, or to #large sites#.

## 25-622 - Location of parking spaces in lower density growth management areas

LAST AMENDED
4/14/2010

The provisions of this Section shall apply to all #zoning lots# with #buildings# containing #residences# in R1, R2, R3, R4-1 and R4A Districts within #lower density growth management areas#.

Required #accessory# off-street parking spaces shall be permitted only within a #building# or in any open area on the #zoning lot# that is not between the #street line# and the #street wall# or

prolongation thereof of the #building#. Non-required parking spaces may be permitted between the #street line# and the #street wall# provided they are located in a driveway that accesses required parking spaces that are located behind the #street wall# of the #building# or prolongation thereof.

For #zoning lots# with less than 33 feet of #street# frontage, access to all parking spaces through a #front yard# shall be only through a single driveway no more than 10 feet in width.

For #zoning lots# with at least 33 feet of #street# frontage, access to all parking spaces through a #front yard# shall be only through a driveway no more than 20 feet in width.

No more than two unenclosed required parking spaces may be located in tandem (one behind the other), except that no tandem parking shall be permitted in any #group parking facility# with more than four spaces.

## 25-623 - Maneuverability standards for community facility uses

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, the provisions of this Section shall apply to:

(a) #developments# with #accessory# open parking areas in which 70 percent or more of the #floor area# on the #zoning lot# is occupied by a #community facility# #use#;

(b) #enlargements# of a #building# with #accessory# open parking areas or the #enlargement# of an open parking area, that result in:

(1) an increase in the total number of parking spaces #accessory# to #community facility# #uses# on the #zoning lot# that is at least 20 percent greater than the number of such spaces existing on November 28, 2007; or

(2) an increase in the total amount of #floor area# on the #zoning lot# that is at least 20 percent greater than the amount of #floor area# existing on November 28, 2007, and where at least 70 percent of the #floor area# on the #zoning lot# is occupied by #community facility# #uses#; and

(c) existing #buildings# with new #accessory# open parking areas in which 70 percent or more of the #floor area# on the #zoning lot# is occupied by a #commercial# or #community facility# #use#.

The provisions of this Section shall not apply to surface parking located on the roof of a #building#, indoor parking garages, #public parking garages#, structured parking facilities, or #developments# or #enlargements# in which at least 70 percent of the #floor area# or #lot area# on a #zoning lot# is used for automobile dealers, automotive repair and maintenance, or #automotive service stations# listed under Use Group VI.

For the purposes of this Section, an "open parking area" shall mean that portion of a #zoning lot# used for the parking or maneuvering of vehicles, including service vehicles, which is not covered by a #building#. Open parking areas shall also include all required landscaped areas within and adjacent to the open parking area.

For all such new or #enlarged# open parking areas, a site plan shall be submitted to the Department of Buildings showing the location of all parking spaces, curb cuts and compliance with the maneuverability standards, as set forth in paragraphs (b) and (c) of Section 36-57.

## 25-624 - Special parking regulations for certain community facility uses in lower density growth management areas

LAST AMENDED

6/6/2024

(a) In #lower density growth management areas# other than R6 and R7 Districts in Community District 10, Borough of the Bronx, all #zoning lots# containing #buildings# with the following #uses# shall be subject to the provisions of paragraph (b) of this Section:

(1) ambulatory diagnostic or treatment health care facilities listed under Use Group III(B), except where such #zoning lot# contains #buildings# used for hospitals, as defined in the New York State Hospital Code, or #long-term care facilities#; and

(2) child care services as listed under the definition of #school# in Section 12-10 (DEFINITIONS), except where such #zoning lot# contains #buildings# used for houses of worship or, for #zoning lots# that do not contain #buildings# used for houses of worship, where the amount of #floor area# used for child care services is equal to 25 percent or less of the amount of #floor area# permitted for #community facility# #use# on the #zoning lot#.

(b) All #zoning lots# that meet the conditions of paragraph (a) of this Section shall comply with the following provisions:

(1) #Accessory# off-street parking spaces shall be permitted only within a #building# or in any open area on the #zoning lot# that is not between the #street line# and the #street wall# or prolongation thereof of the #building#.

(2) The maneuverability provisions of paragraphs (b) of Section 36-57 (Parking Lot Maneuverability and Curb Cut Regulations) shall apply to all such #zoning lots#. No tandem parking shall be permitted.

(3) The curb cut provisions of paragraph (c) of Section 36-57 shall apply to all such #zoning lots#, except that, for #zoning lots# with less than 75 feet of #street# frontage, a minimum distance of four feet from other curb cuts on adjacent #zoning lots# shall be maintained.

(4) For #zoning lots# in R1, R2, R3A, R3X, R3-1, R4-1 and R4A Districts with #buildings# containing child care services, a driveway shall be required for drop-off and pick-up of users of the child care facility. Such driveway shall have a minimum width of 15 feet and a maximum width of 18 feet and shall serve one-way traffic. Such driveway shall include a designated area for the drop-off and pick-up of users of the facility with a minimum length of 25 feet and a minimum width of 10 feet. Such drop-off and pick-up area shall #abut# a sidewalk with a minimum width of four feet that connects to the child care facility entrance and all public sidewalks. No parking spaces shall be located within such driveway.

(5) For any #zoning lot# containing child care services, driveways and open #accessory# off-street parking spaces may occupy no more than 50 percent of the #lot area# not covered by #buildings#. For #zoning lots# containing ambulatory diagnostic or treatment health care facilities, driveways and open #accessory# off-street parking spaces may occupy no more than 66 percent of the #lot area# not covered by #buildings#.

(6) All parking areas not within a #building# shall be screened from adjoining #zoning lots# and #streets# by a landscaped strip at least four feet wide, densely planted with evergreen shrubs at least four feet high at time of planting, and of a type that may be expected to form a year-round dense screen at least six feet high within three years. Such screening shall be maintained in good condition at all times.

(7) Any lighting provided in off-street parking areas shall be directed away from #residences#.

## 25-625 - Special certification to modify the parking regulations for certain community facility uses in lower density growth management areas

LAST AMENDED
6/6/2024

In #lower density growth management areas# other than R6 and R7 Districts in Community District 10, Borough of the Bronx, the Chairperson of the City Planning Commission may modify the amount of #accessory# off-street parking required pursuant to Section 25-31 (General Provisions), or the parking regulations of paragraphs (b)(3), (b)(4), and (b)(5) of Section 25-624 (Special parking regulations for certain community facility uses in lower density growth management areas), for any #enlargement# of a #building# containing a #use# listed in paragraphs (a) or (b) of this Section, or a change of #use# to, or an #extension# of, such #use#, provided that the applicant submits a site plan that demonstrates to the Chairperson that the location of the existing #building# on the #zoning lot# impedes compliance with the parking requirements of Sections 25-31 and 25-624, and that the Chairperson certifies to the Department of Buildings, that the #enlargement#, #extension# or change of #use# complies with such requirements to the maximum extent feasible.

(a) Ambulatory diagnostic or treatment health care facilities listed under Use Group III(B), except where such #zoning lot# contains #buildings# used for hospitals, as defined in the New York State Hospital Code, or #long-term care facilities#; and

(b) Child care services listed under the definition of #school# in Section 12-10 (DEFINITIONS), except where such #zoning lot# contains #buildings# used for houses of worship and, for #zoning lots# that do not contain #buildings# used for houses of worship, where the amount of #floor area# used for child care services is equal to 25 percent or less of the amount of # floor area# permitted for #community facility# #use# on the #zoning lot#.

## 25-626 - Calculating floor area in parking facilities with lift systems, or in automated parking facilities

LAST AMENDED
12/6/2023

For enclosed #accessory# off-street parking facilities, for the purposes of determining #floor area# in an #automated parking facility#, or an attended parking facility with parking lift systems, each tray upon which a vehicle is stored at a height that exceeds the permitted exemption set forth in the definition of #floor area# in Section 12-10, or as otherwise modified in this Resolution, shall be considered #floor area# in an amount of 153 square feet, or the size of such lifted tray, whichever is greater.

## 25-63 - Location of Access to the Street

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, the entrances and exits for all #accessory# #group parking facilities# with 10 or more spaces shall be located not less than 50 feet from the intersection of any two #street lines#. However, access located within 50 feet of such intersection may be permitted if the Commissioner of Buildings certifies that such a location is not hazardous to traffic safety and not likely to create traffic congestion. The Commissioner of Buildings may refer such matter to the Department of Transportation for a report and may base his determination on such report.

The waiver provisions of Section 25-34 (Waiver of Requirements for All Zoning Lots Where Access Would Be Forbidden) shall apply when the Commissioner of Buildings has certified that there is no

way to arrange the spaces with access to the #street# to conform to the provisions of this Section.

## 25-631 - Location and width of curb cuts in certain districts

LAST AMENDED
12/5/2024

All curb cuts on #zoning lots# with #buildings# containing #residences# shall comply with the provisions of this Section, except that, in #lower density growth management areas#, the provisions of Section 25-632 shall apply. The minimum width of a curb cut shall be eight feet, including splays. In addition, for #non-conforming# #buildings# in all districts, the provisions of Section 25-633 (Curb cut restrictions for certain buildings in R1 through R5 Districts) shall apply.

R2A

(a) In the district indicated, the maximum width of a curb cut shall be 18 feet, and the maximum width of a driveway within a #front yard# shall be 20 feet. All #zoning lots# shall maintain at least 18 feet of uninterrupted curb space along each #street# frontage.

R2X R3 R4 R5

(b) In the districts indicated, except R4B and R5B Districts, as well as for #qualifying residential sites# in R1 through R5 Districts, curb cuts shall comply with the following provisions:

(1) For #zoning lots# containing #residences# where not more than two #accessory# parking spaces are provided:

(i) for #zoning lots# with less than 50 feet of frontage along a #street#, only one curb cut, having a maximum width, including splays, of 10 feet, shall be permitted;

(ii) for #zoning lots# with at least 50 feet of frontage along a #street#, no more than two curb cuts shall be permitted along such #street# frontage. If one curb cut is provided, such curb cut shall have a maximum width, including splays, of 18 feet. If two curb cuts are provided, the maximum width of each curb cut, including splays, shall be 10 feet, and a minimum distance of 30 feet of uninterrupted curb space shall be provided between such curb cuts;

(iii) wherever #accessory# parking spaces are provided in adjacent #side lot ribbons# on #zoning lots# subdivided after June 30, 1989, the curb cuts giving access to such #side lot ribbons# shall be contiguous (paired), so that only one curb cut, having a maximum width of 18 feet, including splays, shall serve both #side lot ribbons#; and

(iv) a minimum distance of 16 feet of uninterrupted curb space shall be maintained between all curb cuts constructed after June 30, 1989, provided that this requirement shall not apply to #zoning lots# existing both on June 30, 1989, and April 14, 2010, that are less than 40 feet wide and where at least 16 feet of uninterrupted curb space is maintained along the #street# in front of the #zoning lot#; or

(2) For #zoning lots# containing #residences# where more than two #accessory# parking spaces are provided:

(i) #zoning lots# with 35 feet or more of frontage along a #street# shall maintain a minimum distance of 16 feet of uninterrupted curb space along such #street#;

(ii) a minimum distance of 16 feet of uninterrupted curb space shall be maintained between all curb cuts constructed after June 30, 1989, provided that this requirement shall not apply to any #zoning lot# existing both on June 30, 1989 and April 14, 2010, that is less than 40 feet wide and where at least 16 feet of uninterrupted curb space is maintained in front of such #zoning lot#

along the #street#;

(iii) all driveways shall be located at least 13 feet from any other driveway on the same or adjoining #zoning lots#. However, driveways may be paired with other driveways on the same or adjoining #zoning lots#, provided the aggregate width of such paired driveways, including any space between them, does not exceed 20 feet. Curb cuts accessing such paired driveway shall have a minimum width of 15 feet and a maximum width, including splays, of 18 feet; and

(iv) except for paired driveways as set forth in paragraph (b)(2)(iii) of this Section, the maximum width of a curb cut accessing less than 50 parking spaces shall be 12 feet, including splays, and the maximum width of a curb cut accessing more than 50 parking spaces shall be 22 feet, including splays. However, where Fire Department regulations set forth in the Administrative Code of the City of New York require curb cuts of greater width, such curb cuts may be increased to the minimum width acceptable to the Fire Department.

R4B R5B

(c) In the districts indicated, curb cuts are permitted only on #zoning lots# with at least 40 feet of #street# frontage and existing on the effective date of establishing such districts on the #zoning maps#. Any such #zoning lot# may be subdivided; however, curb cuts are permitted only for a resulting subdivided #zoning lot# that has at least 40 feet of #street# frontage. For #detached#, #semi-detached# and #zero lot line buildings#, the width and location of curb cuts shall be in accordance with paragraph (b)(1), inclusive, of this Section. For #attached# #buildings# and #building segments#, and for multiple dwellings in R5B Districts, at least 34 feet of uninterrupted curb space shall be maintained between all curb cuts constructed after June 30, 1989, provided that this requirement shall not apply to #zoning lots# existing on both June 30, 1989, and April 14, 2010, that are less than 76 feet wide and where at least 34 feet of uninterrupted curb space is maintained along the #street# in front of the #zoning lot#.

For #zoning lots# with less than 40 feet of #street# frontage and existing on the effective date of establishing such districts on the #zoning maps#, curb cuts shall be prohibited.

R6 R7 R8

(d) In the districts indicated, only one curb cut, having a maximum width of 12 feet, including splays, shall be permitted on any #street# frontage of a #zoning lot#. However, where a curb cut accesses a #group parking facility# with 50 or more spaces, the maximum width of a curb cut shall be 22 feet, including splays, or alternatively, two curb cuts shall be permitted to access such #group parking facility#, each with a maximum width of 12 feet, including splays, and spaced at least 60 feet apart. For #zoning lots# subdivided after April 14, 2010, curb cuts shall only be permitted along the #street# frontage of such subdivided #zoning lot# where at least 34 feet of uninterrupted curb space is maintained, and shall comply with the width and spacing requirements of this paragraph.

However, in R6B, R7B and R8B Districts, curb cuts shall be prohibited, except on #zoning lots# occupied by a #building# with a #street wall# at least 40 feet in width or, for #zoning lots# with multiple #building segments#, only where such curb cut is in front of a #building segment# with a #street wall# at least 40 feet in width. On such #zoning lots#, curb cuts shall be permitted only on the #street# frontage that is at least 40 feet wide.

R9 R10 R11 R12

(e) In the districts indicated, no curb cuts shall be permitted on any #wide street# frontage, and only one curb cut, having a maximum width of 22 feet, including splays, shall be permitted on any #narrow street# frontage.

(f) Modification of curb cut requirements:

R2X R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

(1) In the districts indicated, the location and width of curb cuts, as required by the provisions of this Section, may be modified if the Commissioner of Buildings certifies that the specified curb cut locations would require the removal of shade trees maintained by the City of New York. The Commissioner of Buildings may refer such matter to the Department of Parks and Recreation and the Department of Transportation for reports, and may base the determination on such reports.

R6 R7 R8 R9 R10 R11 R12

(2) In the districts indicated, the City Planning Commission may authorize modifications to the provisions of this Section, provided that the Commission finds that:

(i) the proposed modification does not adversely affect the character of the surrounding area; and

(ii) where more than one curb cut is provided, the curb cuts are arranged to foster retention of curbside parking spaces along the #street frontage# of the #zoning lot#.

## 25-632 - Driveway and curb cut regulations in lower density growth management areas

LAST AMENDED
2/2/2011

The provisions of this Section shall apply to all #zoning lots# with #buildings# containing #residences# within all #lower density growth management areas#, except that these provisions shall not apply to any #zoning lot# occupied by only one #single-family# #detached# #residence# with at least 60 feet of frontage along one #street# and, for such #residences# on #corner lots#, with at least 60

feet of frontage along two #streets#.

(a) For #zoning lots# with less than 33 feet of frontage along a #street#, only one curb cut, having a maximum width, including splays, of 10 feet, shall be permitted.

(b) For #zoning lots# with at least 33 feet of frontage along a #street#, multiple curb cuts are permitted. The maximum width of a curb cut serving a driveway 12 feet or less in width shall be 10 feet, including splays. Driveways wider than 12 feet at any point within a #front yard# shall be accessed by a single curb cut with a minimum width of 17 feet and a maximum width, including splays, of 18 feet.

(c) The center line of each curb cut shall be coincident with the center line of the driveway that it serves.

(d) All driveways shall be located at least 13 feet from any other driveway on the same or adjoining #zoning lots#. However, driveways may be paired with other driveways on adjoining #zoning lots# provided the aggregate width of such paired driveways, including any space between them, does not exceed 20 feet.

(e) All #zoning lots# with #buildings# containing #residences# shall maintain a minimum distance of 16 feet of uninterrupted curb space between all curb cuts constructed after June 30, 1989.

(f) The requirements of paragraphs (d) and (e) of this Section may be waived where the Commissioner of Buildings certifies that, due to the location of driveways and curb cuts on adjacent #zoning lots#, there is no way to locate the driveways and curb cuts in compliance with this requirement of this Section, and that at least 16 feet of uninterrupted curb space is maintained along the #street# in front of the #zoning lot#.

(g) For multiple #buildings# on a single #zoning lot#, access to all parking spaces shall be provided entirely on the same #zoning lot#.

## 25-633 - Curb cut restrictions for certain buildings in R1 through R5 Districts

LAST AMENDED
2/2/2011

R1 R2 R3-1 R3A R3X R4-1 R4A R5A

(a) In the districts indicated, curb cuts are prohibited for #attached# #buildings# except where such #building# is bounded on one side by a #side yard# at least eight feet in width. For such #buildings#, a curb cut shall be permitted only along that portion of the #street# frontage of the #zoning lot# directly in front of a #side yard# that is at least eight feet wide and accesses a parking space located beyond the #street wall# or prolongation thereof.

R1 R2 R3A R3X R4A R5A

(b) In the districts indicated, for #semi-detached# #buildings#, a curb cut shall only be permitted along that portion of the #street# frontage of the #zoning lot# directly in front of a #side yard# that is at least eight feet wide and accesses a parking space located beyond the #street wall# or prolongation thereof.

## 25-634 - Curb cut regulations for community facilities

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, any #development# or #enlargement# containing a #community facility# #use# with an unenclosed parking area shall comply with the provisions of this Section.

Curb cuts serving one travel lane shall have a maximum width of 12 feet, excluding splays, and curb cuts serving two travel lanes shall have a maximum width of 24 feet, excluding splays. For parking lots with more than 100 parking spaces, curb cuts of up to 30 feet, excluding splays, shall be permitted.

However, where Fire Department regulations set forth in the Administrative Code of the City of New York require curb cuts of greater width, such curb cuts may be increased to the minimum width acceptable to the Fire Department.

For #zoning lots# with 100 feet or less of #street frontage#, only two curb cuts shall be permitted. For every additional 50 feet of #street# frontage, one additional curb cut shall be permitted.

A minimum distance of 18 feet from any other curb cut on the same or adjacent #zoning lots# shall be maintained, except where the Commissioner of Buildings determines that, due to the location of curb cuts constructed prior to November 28, 2007, on adjacent #zoning lots#, there is no way to locate the curb cut 18 feet from such adjacent existing curb cuts.

## 25-635 - Maximum driveway grade

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5

In the districts indicated, the maximum grade of a driveway shall not exceed 11 percent in any #front yard#. Driveways existing on April 30, 2008, which exceed a grade of 11 percent, may be used to access parking spaces provided for #residences# constructed after April 30, 2008.

## 25-64 - Surfacing

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, all open off-street parking spaces shall be surfaced with permeable paving materials, asphaltic or Portland cement concrete, or other hard-surfaced dustless material.

## 25-65 - Screening

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

(a) In all districts, as indicated, except where such districts are located in #lower density growth management areas#, all open off-street parking areas or groups of individual garages with 10 spaces or more, that are located either at natural grade or on a roof, shall be screened from all adjoining #zoning lots#, including such #zoning lots# situated across a #street#, by either:

(1) a strip at least four feet wide, densely planted with shrubs or trees that are at least four feet high at the time of planting and that are of a type which may be expected to form a year-round dense screen at least six feet high within three years; or

(2) a wall or barrier or uniformly painted fence of fire-resistant material at least six feet high, but not more than eight feet above finished grade (or above the roof level, if on a

roof). Such wall, barrier or fence may be opaque or perforated, provided that not more than 50 percent of the face is open.

For community facilities located in R1, R2, R3, R4 or R5 Districts, except for any parking that is located on a roof, all such parking shall be screened pursuant to paragraph (a)(1) of this Section.

In addition, such screening shall be maintained in good condition at all times, may be interrupted by normal entrances or exits and shall have no #signs# hung or attached thereto other than those permitted in Section 22-323 (Signs for parking areas).

(b) In #lower density growth management areas#, all open parking areas with five or more spaces shall be screened from adjoining #zoning lots# by a landscaped strip at least four feet wide densely planted with evergreen shrubs at least four feet high at time of planting, and of a type that may be expected to form a year-round dense screen at least six feet high within three years. Such screening shall be maintained in good condition at all times.

The provisions of paragraphs (a) and (b) of this Section shall not apply at the #street line# of #zoning lots# where the planting requirements of Section 37-921 (Perimeter landscaping) apply.

## 25-66 - Parking Lot Landscaping

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, the provisions of Section 37-90 (PARKING LOTS), inclusive, shall apply to open parking areas that contain 18 or more spaces or are greater than 6,000 square feet in area, as

follows:

(a) #developments# with #accessory# open parking areas in which 70 percent or more of the #floor area# on the #zoning lot# is occupied by a #community facility# #use#;

(b) #enlargements# of a #building# with #accessory# open parking areas or the #enlargement# of an open parking area that result in:

(1) an increase in the total number of parking spaces #accessory# to #commercial# or #community facility# #uses# on the #zoning lot# that is at least 20 percent greater than the number of such spaces existing on November 28, 2007; or

(2) an increase in the total amount of #floor area# on the #zoning lot# that is at least 20 percent greater than the amount of #floor area# existing on November 28, 2007, and where at least 70 percent of the #floor area# on the #zoning lot# is occupied by #commercial# or #community facility# #uses#; and

(c) existing #buildings# with new #accessory# open parking areas in which 70 percent or more of the #floor area# on the #zoning lot# is occupied by a #commercial# or #community facility# #use#.

The provisions of this Section shall not apply to surface parking located on the roof of a #building#, indoor parking garages, #public parking garages#, structured parking facilities, or #developments# in which at least 70 percent of the #floor area# or #lot area# on a #zoning lot# is used for automobile dealers, automotive repair and maintenance, or #automotive service stations# listed under Use Group VI.

For the purposes of this Section, an "open parking area" shall mean that portion of a #zoning lot# used for the parking or maneuvering of vehicles, including service vehicles, which is not covered by a #building#. Open parking areas shall also include all required landscaped areas within and adjacent to the open parking area.

Notwithstanding the provisions of this Section, where parking requirements are waived, pursuant to Section 25-33, on #zoning lots# subdivided after November 28, 2007, and parking spaces #accessory# to #community facility# #uses# or curb cuts accessing #community facility# #uses# are shown on the site plan required pursuant to Section 25-623, the provisions of Section 37-921 (Perimeter landscaping) shall apply.

## 25-67 - For Parking Facilities Containing Car Sharing Vehicles

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

Within an off-street parking facility that contains #car sharing vehicles#, an information plaque shall be placed within 20 feet of either the entrance to the parking facility or the attendant's station, at a location accessible to and visible to users of such facility. The plaque shall be fully opaque, non-reflective and constructed of permanent, highly durable materials and shall contain the following statements in lettering no less than one inch high:

(a) "Total parking spaces in facility:" which shall specify the total number of parking spaces permitted within such parking facility;

(b) "Maximum number of car sharing vehicles:" which shall specify the total number of #car sharing vehicles# permitted within such parking facility; and

(c) where such parking facility contains #accessory residential# parking spaces, "Accessory residential parking spaces shall be made available to residents of this building within 30 days after a written request is made to the landlord."

## 25-70 - OFF-STREET LOADING REGULATIONS

LAST AMENDED
12/15/1961

The following regulations on permitted and required accessory off-street loading berths are adopted in order to provide needed space off public streets for loading and unloading activities, to restrict the use of the streets for such activities, to help relieve traffic congestion in residential areas within the city, and thus to promote and protect public health, safety and general welfare.

## 25-71 - Permitted Accessory Off-street Loading Berths

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, #accessory# off-street loading berths, open or enclosed, may be provided for #residences#, for permitted #community facility# #uses#, for #commercial# #uses# permitted as #accessory# #uses# in #large-scale residential developments#, or for #uses# permitted by special permit, under rules and regulations promulgated by the Commissioner of Buildings, and subject to the provisions set forth in Sections 25-75 (Location of Access to the Street), 25-76 (Surfacing), and 25-77 (Screening).

## 25-72 - Required Accessory Off-street Loading Berths

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, #accessory# off-street loading berths, open or enclosed, shall be provided in conformity with the requirements set forth in the following table for all #development# or #enlargement# after December 15, 1961, for the #uses# listed in the table, as a condition precedent to the #use# of such #development# or #enlargement#.

After December 15, 1961, if the #use# of any #building or other structure# is #enlarged#, the requirements set forth in the table shall apply to the #floor area# of the #enlarged# portion of such #building#.

For the purposes of applying the loading requirements of this Chapter, #uses# are grouped into the following Loading Requirement Categories (LRC).

| **Loading Requirement Category** | **#Use# or Use Group** |
|---|---|
| LRC – A | All #uses# listed under Use Groups IX(A), IX(B) and X |
| LRC – B | All #uses# listed under Use Group VI, except automotive equipment rental and leasing, automotive repair and maintenance, or gasoline stations; all #uses# listed under Use Group VIII |
| LRC – C | All #uses# listed under Use Groups V and VII; court houses listed under Use Group IV(A) |
| LRC – D | Hospitals and related facilities listed under Use Group III(B); prisons listed under Use Group IV(A) |
| LRC – E | Funeral establishments listed under Use Group VI |

REQUIRED OFF-STREET LOADING BERTHS FOR DEVELOPMENTS OR ENLARGEMENTS

| **Loading Requirement Category** | **Districts** | |
|---|---|---|
| | **R1 R2 R3 R4 R5 R6** | **R7 R8 R9 R10** |
| **LRC-A** | n/a | |
| **LRC-B** 1 | First 8,000 sq ft: None<br>Next 17,000 sq ft: 1<br>Next 15,000 sq ft: 1<br>Next 20,000 sq ft: 1<br>Next 40,000 sq ft: 1<br>Each additional 150,000 sq ft: 1 | First 25,000 sq ft: None<br>Next 15,000 sq ft: 1<br>Next 60,000 sq ft: 1<br>Each additional 150,000 sq ft: 1 |
| **LRC-C** | n/a | |
| **LRC-D** 2 | First 10,000 sq ft: None<br>Next 290,000 sq ft: 1<br>Each additional 300,000 sq ft: 1 | |
| **LRC E** | n/a | |

1 For #accessory# #commercial# #uses# in #large-scale residential developments#.

2 Requirements in this table are in addition to area utilized for ambulance parking.

## 25-73 - Special Provisions for Zoning Lots Divided by District Boundaries

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, whenever a #zoning lot# is divided by a boundary between districts having different requirements for #accessory# off-street loading berths, the provisions set forth in Article VII, Chapter 7 shall apply.

## 25-74 - Size of Required Berths

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, all required off-street loading berths, open or enclosed, shall conform to the regulations on minimum dimensions set forth in the following table. The dimensions of off-street berths shall not include driveways or entrances to or exits from such off-street berths.

MINIMUM DIMENSIONS FOR REQUIRED ACCESSORY OFF-STREET LOADING BERTHS (in feet)

| | Length | Width | Vertical clearance |
|---|---|---|---|
| LRC-A | n/a | n/a | n/a |

| | | | |
|---|---|---|---|
| LRC-B[1] | 37 | 12 | 14 |
| LRC-C | n/a | n/a | n/a |
| LRC-D | 37 | 12 | 12 |
| LRC-E | n/a | n/a | n/a |

1 For #accessory# #commercial# #uses# in #large-scale residential developments#

## 25-75 - Location of Access to the Street

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, no permitted or required #accessory# off-street loading berth, and no entrance or exit thereto, shall be located less than 50 feet from the intersection of any two #street lines#. However, a location closer to such intersection may be permitted if the Commissioner of Buildings certifies that such a location is not hazardous to traffic safety and not likely to create traffic congestion.

The requirements for #accessory# off-street loading berths set forth in Section 25-72 (Required Accessory Off-street Loading Berths) shall not apply to any #building# as to which the Commissioner of Buildings certifies that there is no way to arrange the required berths to conform to the provisions of this Section.

The Commissioner of Buildings may refer such matters requiring certification to the Department of Transportation for report and may base his determination on such report.

## 25-76 - Surfacing

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, all permitted or required open off-street loading berths shall be surfaced with permeable paving materials, asphaltic or Portland cement concrete, or other hard-surfaced dustless material, at least six inches thick.

## 25-77 - Screening

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, all permitted or required open off-street loading berths shall be screened from all adjoining #zoning lots#, including such #zoning lots# situated across a #street# by either:

(a) a strip at least four feet wide, densely planted with shrubs or trees that are at least four feet high at the time of planting and that are of a type which may be expected to form a year-round dense screen at least six feet high within three years; or

(b) a wall or barrier or uniformly painted fence or fire-resistant material, at least six feet but not more than eight feet above finished grade. Such wall, barrier or fence may be opaque or perforated, provided that not more than 50 percent of the face is open.

In addition, such screening:

(1) shall be maintained in good condition at all times;

(2) may be interrupted by normal entrances and exits; and

(3) shall have no #signs# hung or attached thereto other than those permitted in Section 22-32 (Permitted Non-illuminated Accessory Signs).

## 25-80 - BICYCLE PARKING

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, the provisions of this Section, inclusive, related to bicycle parking spaces shall apply to:

(a) #developments#;

(b) #enlargements# that increase the #floor area# within a #building# by 50 percent or more;

(c) #dwelling units# created by #conversions# of non-#residential# #floor area#;

(d) new #dwelling units# in #buildings# or #building segments# constructed after April 22, 2009;

(e) new enclosed #accessory# #group parking facilities# with 35 or more automobile parking spaces; and

(f) open parking areas #accessory# to #commercial# or #community facility# #uses# that contain 18 or more automobile parking spaces or are greater than 6,000 square feet in area.

In addition, the provisions of Section 25-85 (Floor Area Exemption) shall apply to all #buildings# as set forth therein.

The number of #accessory# bicycle parking spaces provided pursuant to this Section, the total area, in square feet, of bicycle parking spaces and the total area, in square feet, excluded from the calculation of #floor area# for such spaces shall be noted on the certificate of occupancy.

## 25-81 - Required Bicycle Parking Spaces

LAST AMENDED
4/22/2009

## 25-811 - Enclosed bicycle parking spaces

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, enclosed #accessory# bicycle parking spaces shall be provided for at least that amount specified for the applicable #use# set forth in the table in this Section.

For the purposes of calculating the number of required bicycle parking spaces, any fraction of a space 50 percent or greater shall be counted as an additional space. For #residences#, the #accessory# bicycle parking requirement shall be calculated separately for separate #buildings# or #building segments#.

For the purposes of applying such provisions to #rooming units#, three #rooming units# shall be considered the equivalent of one #dwelling unit#.

Where any #building# or #zoning lot# contains two or more #uses# having different bicycle parking requirements as set forth in the table, the bicycle parking requirements for each type of #use# shall apply to the extent of that #use#.

Where an enclosed #accessory# #group parking facility# is provided, the required number of bicycle parking spaces for the #use# to which such facility is #accessory# shall be the amount set forth for such #use# in the table, or one for every 10 automobile parking spaces that are enclosed within a #building or other structure# or located on the roof of a #building#, whichever will require a greater number of bicycle parking spaces.

REQUIRED BICYCLE PARKING SPACES FOR RESIDENTIAL OR COMMUNITY FACILITY USES

| **Type of #Use#** | **Bicycle Parking Spaces Required in Relation to Specified Unit of Measurement** |
|---|---|
| **FOR RESIDENTIAL USES** | |
| #Single-family# #detached# #residences# listed under Use Group II | None required |
| All other types of #residences# listed under Use Group II, except #affordable independent residences for seniors# | 1 per two #dwelling units# |

| | |
|---|---|
| #Affordable independent residences for seniors# listed under Use Group II | 1 per 10,000 square feet of #floor area# |
| **FOR COMMUNITY FACILITY USES** 1 | |
| College or #school# student dormitories or fraternity and sorority student houses listed under Use Group III(A) | 1 per 2,000 square feet of #floor area# |
| Colleges, universities, or seminaries listed under Use Group III(B)2<br><br>(a) Classrooms, laboratories, student centers or offices<br><br>(b) Theaters, auditoriums, gymnasiums or stadiums | <br><br>1 per 5,000 square feet of #floor area#<br><br>1 per 20,000 square feet of #floor area# |
| Libraries, museums or non-commercial art galleries listed under Use Group III(B) | 1 per 20,000 square feet of #floor area# |
| Monasteries, convents or novitiates listed under Use Group III(A); houses of worship listed under Use Group III(B);~~,~~ rectories or parish houses listed under Use Group III(A) or III(B); all #uses# listed under Use Group I | None required |
| All other #uses# listed under Use Group III not otherwise listed in this table | 1 per 10,000 square feet of #floor area# |

1 #Non-profit hospital staff dwellings# shall be subject to the requirements for Use Group II #residential uses#

2 Up to half of required spaces may be provided as unenclosed bicycle parking spaces pursuant to the requirements of Section 25-83 (Restrictions on Operation, Size and Location of Enclosed Bicycle Parking Spaces)

However, the bicycle parking requirements set forth in the table shall be waived for bicycle parking spaces that are #accessory# to:

(a) #buildings# or #building segments# containing 10 #dwelling units# or less;

(b) colleges, universities or seminaries where the number of required bicycle parking spaces is six or less;

(c) college or #school# student dormitories or fraternity and sorority student houses where the number of required bicycle parking spaces is five or less; or

(d) all other #community facility# #uses# not otherwise listed in the table where the number of required bicycle parking spaces is three or less.

## 25-812 - Unenclosed bicycle parking spaces

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, for open parking areas #accessory# to #community facility# #uses# that contain 18 or more spaces or are greater than 6,000 square feet in area, which meet the applicability standards of Section 25-66 (Parking Lot Landscaping), unenclosed #accessory# bicycle parking spaces shall be provided as follows:

(a) One bicycle parking space shall be provided for every 10 automobile parking spaces, up to 200 automobile parking spaces. Thereafter, one bicycle parking space shall be provided for every 100 automobile parking spaces. Fractions equal to or greater than one-half resulting from this calculation shall be considered to be one bicycle parking space.

(b) Each bicycle rack shall allow for the bicycle frame and at least one wheel to be locked to the rack. If bicycles can be locked to each side of the rack without conflict, each side may be counted toward a required space. Thirty inches of maneuverable space shall be provided between parallel bicycle racks and an eight foot wide aisle shall be provided between bicycle rack areas.

(c) Bicycle racks shall be provided within 50 feet of a main entrance of a #building# and a minimum of 24 inches from any wall. However, if more than 40 bicycle parking spaces are required, 50 percent of such spaces may be provided at a distance of up to 100 feet from the main entrance of a #building#. Department of Transportation bicycle racks provided on a fronting sidewalk may be counted toward this requirement, provided such racks meet the standards of this paragraph, (c).

## 25-82 - Authorization for Reduction of Spaces

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, the City Planning Commission may authorize a reduction in the number of required bicycle parking spaces set forth in Section 25-811 (Enclosed bicycle parking spaces), or a waiver of all such spaces, upon finding there are subsurface conditions, below-ground infrastructure or other site planning constraints that would make accommodating such bicycle parking spaces on or below the first #story# of the #building# infeasible. The Commission may request reports from licensed engineers or registered architects in considering such reduction.

## 25-83 - Restrictions on Operation, Size and Location of Enclosed Bicycle Parking Spaces

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, all #accessory# bicycle parking spaces shall be provided on the same #zoning lot# as the #building# or #use# to which such spaces are #accessory#, except as provided in Section 25-84 (Off-site Bicycle Parking Spaces).

All enclosed #accessory# bicycle parking spaces shall be surrounded on all sides by a solid enclosure, except where a parking garage is open at the sides, and covered by a roof for weather protection. Each bicycle space shall adjoin a rack or similar system for securing the bicycle. Bicycle parking spaces shall be located in an area secured by a lock or similar means, or adjoin a securely-anchored rack to which the bicycle frame and at least one wheel can be locked. Fifteen square feet of area shall be provided for each bicycle space. However, the area for each bicycle space may be reduced by up to nine square feet per bicycle if the Commissioner of Buildings certifies that a layout has been submitted to adequately accommodate the specified number of bicycles.

A plaque shall be placed at the exterior of the entry to the bicycle parking area, outside any locked door, with lettering at least three-quarter inches in height stating "Bicycle Parking."

For colleges, universities or seminaries, one-half of required enclosed #accessory# bicycle parking spaces may be provided as open unenclosed spaces, provided that such spaces meet the standards of paragraph (b) of Section 25-812 (Unenclosed bicycle parking spaces).

All bicycle parking spaces which are #accessory# to #residences# shall be made available for the storage and independent access of the bicycles used by the occupants of such #residences#.

All required bicycle parking spaces which are #accessory# to a #community facility# #use# shall be made available for the storage and independent access of the bicycles used by the employees of such #use#, except that bicycle parking spaces #accessory# to colleges or universities shall be accessible to all authorized users of such #building#, and that bicycle parking spaces #accessory# to community facilities with sleeping accommodations may be accessible to the occupants of such facility.

Bicycle spaces may be located in a room secured by a lock or similar means, provided that access is through a commonly accessible area and access is made available to eligible users on an equal basis.

## 25-84 - Off-site Bicycle Parking Spaces

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, #accessory# bicycle parking spaces required pursuant to Section 25-811 (Enclosed bicycle parking spaces) may be provided on a #zoning lot# other than the same #zoning lot# as the #use# to which such spaces are #accessory#, provided that such bicycle parking spaces are located on a #zoning lot# not further than 1,000 feet from the nearest boundary of the #zoning lot# occupied by the #use# to which they are #accessory#, or within a subsurface parking and other service facility that serves multiple #zoning lots#, including the #zoning lot# occupied by the #use# to which they are #accessory#.

A plaque shall be placed within 30 feet of a #building# entrance, with lettering at least three-quarter inches in height stating "Bicycle Parking" followed by information directing users to the address of the off-site location.

The number of off-site #accessory# bicycle parking spaces provided pursuant to this Section and the area of such bicycle parking spaces, in square feet, shall be noted on the certificate of occupancy for

both the #building# in which the off-site bicycle parking spaces are located, and the #building# containing the #use# to which such bicycle parking spaces are #accessory#.

## 25-85 - Floor Area Exemption

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, space provided for enclosed #accessory# bicycle parking spaces pursuant to the standards of this Section, shall be excluded from the calculation of #floor area#, provided that:

(a) the space excluded from #floor area# does not exceed an amount equal to 15 square feet multiplied by the number of required spaces or, if spaces are waived pursuant to paragraphs (a), (b), (c) or (d) of Section 25-811 (Enclosed bicycle parking spaces), the number that would have been required but for the waiver, or, if spaces are not required because the #building# was constructed prior to April 22, 2009, the number that would be required if such #building# were newly constructed; and

(b) the #accessory# bicycle parking spaces provided meet the standards for required bicycle parking of Section 25-83 (Restrictions on Operation, Size and Location of Enclosed Bicycle Parking Spaces).

Notwithstanding the provisions of paragraph (a) of this Section, for the #uses# listed in the table, the amount of space that may be excluded from the calculation of #floor area# shall not exceed an amount equal to 15 square feet multiplied by the number of spaces set forth in the table.

MAXIMUM BICYCLE PARKING SPACES EXCLUDED FROM FLOOR AREA

| Type of #Use# | Maximum Bicycle Parking Spaces Excluded from #Floor Area# in Relation to Specified Unit of Measurement |
|---|---|
| **FOR RESIDENTIAL USES** | |
| #Affordable independent residences for seniors# listed under Use Group II | 1 per 2,000 square feet of #floor area# |
| **FOR COMMUNITY FACILITY USES** | |
| Philanthropic or non-profit institutions with sleeping accommodations listed under Use Group III(A) | 1 per 2,000 square feet of #floor area# |
| Proprietary, non-profit or voluntary hospitals and related facilities, except animal hospitals, listed under Use Group III(B) | 1 per 5,000 square feet of #floor area# |

However, in no event shall this Section apply to #single-# or #two-family residences# and in no event shall this Section apply to #accessory# bicycle parking spaces provided off-site pursuant to Section 25-84 (Off-site Bicycle Parking Spaces).

Space provided for #accessory# bicycle parking spaces within an #accessory# #group parking facility# shall not be counted as #floor area# provided that such portion of the #accessory# #group parking facility# does not count as #floor area#.

## 25-86 - Waiver or Reduction of Spaces for Subsidized Housing

LAST AMENDED
12/5/2024

R1 R2 R3 R4 R5 R6 R7 R8 R9 R10 R11 R12

In all districts, as indicated, except in the Special Southern Hunters Point District, the number of required bicycle parking spaces set forth in Section 25-811 (Enclosed bicycle parking spaces) may be reduced or waived by the Commissioner of Buildings, provided that the Commissioner of the Department of Housing Preservation and Development has submitted a letter certifying that:

(a) at least 50 percent of the #dwelling units# in the #building# or #building segment# will be income-restricted pursuant to the provisions of Section 27-10 (ADMINISTRATION OF AFFORDABLE HOUSING), inclusive, or pursuant to the terms of a grant, loan or subsidy from any Federal, State or local agency or instrumentality, including, but not limited to, the disposition of real property for less than market value, purchase money financing, construction financing, permanent financing, the utilization of bond proceeds and allocations of low income housing tax credits. An exemption or abatement of real property taxes shall not qualify as a grant, loan or subsidy for the purposes of this paragraph;

(b) there is insufficient space within the #building# to accommodate the required number of bicycle parking spaces on or below the first #story# of the #building#, including within an enclosed #accessory# #group parking facility#;

(c) if permitted automobile parking spaces are provided, the required bicycle spaces cannot be accommodated within an enclosed #group parking facility# by reconfiguring automobile parking spaces or removing three or fewer permitted automobile parking spaces;

(d) additional space cannot reasonably be constructed based on the amount of subsidy available to the project; and

(e) the number of required bicycle parking spaces is being reduced by the minimum amount necessary to address these limitations.